

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF SUFFOLK

Index No.

Date Purchased:

-----X
DEVON L TYME, DILLON L TYME and MICHELLE
RITCHIE,

VERIFIED SUMMONS

Plaintiffs,

-against-

Plaintiffs designate Suffolk
County as the place of trial.

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT and NEW YORK CITY
POLICE OFFICER DOUGLAS DEBONET, Individually
and as a New York City Police Officer,

The basis of venue is:
Accident Location

Accident occurred at:
2 Ann Street
Selden, New York

Defendants.

-----X County of Suffolk

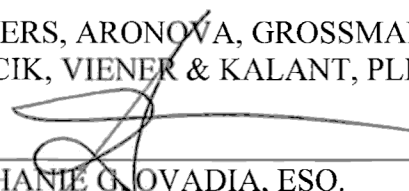
TO THE DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer or, if the complaint is not served with summons, to serve a notice of appearance, on the Plaintiffs' Attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Garden City, New York
April 5, 2023

Yours, etc.,

SANDERS, ARONOV, GROSSMAN,
WOYCIK, VIENER & KALANT, PLLC


STEPHANIE ONOVADIA, ESQ.

Attorneys for Plaintiffs

DEVON L TYME
DILLON L TYME and
MICHELLE RITCHIE

100 Garden City Plaza, Suite 500
Garden City, New York 11530
(516) 741-5252

FILE #: SAG-ASSLT-MU-68578

TO: **THE CITY OF NEW YORK**
c/o Corporation Counsel
100 Church Street
New York, New York 10007

THE NEW YORK CITY POLICE DEPARTMENT
c/o Corporation Counsel
100 Church Street
New York, New York 10007

NEW YORK CITY POLICE OFFICER DOUGLAS DEBONET
c/o Corporation Counsel
100 Church Street
New York, New York 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
DEVON L TYME, DILLON L TYME and MICHELLE
RITCHIE,

Index No.

Plaintiffs,

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT and NEW YORK CITY
POLICE OFFICER DOUGLAS DEBONET, Individually
and as a New York City Police Officer,

Defendants.

-----X

Plaintiffs, by their attorneys, SANDERS, ARONOVA, GROSSMAN, WOYCIK,
VIENER & KALANT, PLLC, as and for his Verified Complaint, herein respectfully alleges,
upon information and belief, as follows:

**AS AND FOR A FIRST CAUSE OF ACTION ON BEHALF OF PLAINTIFFS DEVON L
TYME, DILLON L TYME and MICHELLE RITCHIE: 42 U.S.C. section 1983, excessive
force, false arrest and violation of plaintiffs' civil and constitutional rights**

1. This is an action for damages sustained by a citizen of the United States of
America against THE CITY OF NEW YORK, THE NEW YORK CITY POLICE
DEPARTMENT and NEW YORK CITY POLICE OFFICER DOUGLAS DEBONET,
Individually and as a New York City Police Officer, and Officers of THE CITY OF NEW
YORK who violated plaintiffs' Federal and State Constitutional and Civil rights, including but
not limited to the First, Fourth, Fifth and Fourteenth Amendments to the United States
Constitution, who unlawfully assaulted plaintiff, and who acted negligently as Officers employed
by THE CITY OF NEW YORK, which are sued as a person under 42 U.S.C section 1983.

2. This action is brought pursuant to 42 U.S.C. section 1983 and the First, Fifth, Eighth and Fourteenth Amendments to the Constitution of the United States and arising under the law and statutes of the State of New York, including but not limited to New York Civil Rights Law Section 40-c.

3. That at all the times hereinafter mentioned, the plaintiff, DEVON L TYME, was and still is a Citizen of the United States and a resident of the County of Suffolk, City and State of New York.

4. That at all the times hereinafter mentioned, the plaintiff, DILLON L TYME, was and still is a Citizen of the United States and a resident of the County of Suffolk, City and State of New York.

5. That at all the times hereinafter mentioned, the plaintiff, MICHELLE RITCHIE, was and still is a Citizen of the United States and a resident of the County of Suffolk, City and State of New York.

6. At all times relevant hereto, defendant, Officer DOUGLAS DEBONET, Individually and as a New York City Police Officer, was assigned to THE NEW YORK CITY POLICE DEPARTMENT as an Officer employed by THE CITY OF NEW YORK. At all relevant times, he was acting in such capacity as the agent, servant, and/or employee of the defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, and was acting under the color and pretense of the statutes, ordinances, regulations, customs and usages of the State of New York and THE CITY OF NEW YORK, and under the authority of their office as an Officer of THE CITY OF NEW YORK and of the State of New York. He is sued individually and in his official capacity.

7. At all times relevant hereto, defendants THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT were responsible for the training, supervision, and conduct of the defendants herein. It was also responsible by law for enforcing the regulations of THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, and for ensuring that THE CITY OF NEW YORK's personnel obey the laws of the City and State of New York and of the United States.

8. That at all times herein mentioned, the defendant, THE CITY OF NEW YORK, was a municipal corporation duly existing under and by virtue of the laws of the State of New York, and at all relevant times, it employed the defendants named herein.

9. That at all times herein mentioned, the defendant, THE NEW YORK CITY POLICE DEPARTMENT, was a municipal corporation duly existing under and by virtue of the laws of the State of New York, and at all relevant times, it employed the defendants named herein.

10. That at all times herein mentioned, the defendant, THE CITY OF NEW YORK, was a corporation doing business in the State of New York.

11. That at all times herein mentioned, the defendant, THE NEW YORK CITY POLICE DEPARTMENT, was a corporation doing business in the State of New York.

12. Each and all of the acts of defendants alleged herein were done by defendants, and each of them, not as individuals, but under the color and pretense of the statutes, ordinances, regulations, customs, and usages of THE CITY OF NEW YORK and the State of New York, and under the authority of their office as Officers for THE CITY OF NEW YORK.

13. On or about the 1st day of September, 2022, and within ninety (90) days following the occurrence out of which the claim of the plaintiff arose, the plaintiff served a Notice of Claim

against the defendants, in writing sworn to by said plaintiff, containing all such information as pertained to the happening of the accident complained herein, to be served upon the defendant.

14. That this action is commenced within one year and ninety days after the cause of action arose.

15. That more than (30) days have elapsed since the aforesaid Notice of Claim was served on the defendants.

16. That the defendants were negligent and have refused and neglected to settle, adjust or pay said claim.

17. That all conditions and requirements precedent to the commencement of this action have been complied with.

18. That the oral examination of the plaintiff has been conducted and/or not scheduled in compliance with section 50-h of the General Municipal Law.

19. That this action falls within one or more of the exceptions set forth in CPLR 1602.

20. That pursuant to CPLR section 1602, the defendants are jointly and severally liable for all of plaintiffs' damages, including but not limited to plaintiffs' non-economic loss, by reason of the fact that defendants, their agents, servants and/or employees, owed the plaintiff a non-delegable duty of care; that said defendants acted with reckless disregard for the safety of the plaintiff and others; that the conduct of the defendants was intentional; that the defendants are vicariously liable for the negligent acts and omissions of others, including their agents, servants and/or employees, who caused or contributed to plaintiffs' damages; and that defendants acted knowingly or intentionally, and in concert, to cause the acts or omissions which are the proximate cause of plaintiffs' injuries.

21. That at all times herein mentioned, the defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, operated a department, specifically THE NEW YORK CITY POLICE DEPARTMENT, as part of and in conjunction with its municipal function.

22. That at all times herein mentioned, the defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, their agents, servants and/or employees, maintained said department, specifically THE NEW YORK CITY POLICE DEPARTMENT.

23. That at all times herein mentioned, the defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, their agents, servants and/or employees, managed said department, specifically THE NEW YORK CITY POLICE DEPARTMENT.

24. That at all times herein mentioned, the defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, their agents, servants and/or employees controlled said department, specifically THE NEW YORK CITY POLICE DEPARTMENT.

25. That at all times herein mentioned, the defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, their agents, servants and/or employees, employed officers to work as representatives and employees of THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT.

26. That at all times herein mentioned, the defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, employed the defendant Officer DOUGLAS DEBONET, to work as a THE CITY OF NEW YORK, and THE NEW YORK CITY POLICE DEPARTMENT representative, officer and employee.

27. That at all times herein mentioned, the defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, employed the defendant Officer, DOUGLAS DEBONET, to work as a THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT representative, officer and employee.

28. That at all times herein mentioned, the defendants THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, had the duty to maintain and ensure that the actions, acts, activities and behavior of its agents, employees and/or servants, including the defendant Officers herein, conform to a certain standard of conduct established by law for the protection of others, including the plaintiffs, against unreasonable risk of harm.

29. That at all times herein mentioned, the defendants THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, had the duty to maintain and ensure that its agents, employees and/or servants, including the defendant Officer DOUGLAS DEBONET herein, act in such a manner as to not intentionally, wantonly and/or negligently injure others, including the plaintiffs herein.

30. That at all times herein mentioned, defendant Officer DOUGLAS DEBONET, was an agent, servant representative and/or employee of the defendant, THE CITY OF NEW YORK.

31. That at all times herein mentioned, defendant Officer DOUGLAS DEBONET, was an agent, servant representative and/or employee of the defendants THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT.

32. That at all times herein mentioned, defendant Officer DOUGLAS DEBONET, had the duty to maintain and ensure that his actions, acts, activities and behavior conformed to a

certain standard of conduct established by law for the protection of others, including the plaintiffs, against unreasonable risk of harm.

33. That at all times herein mentioned, defendant Officer DOUGLAS DEBONET, had the duty to conduct himself in such a manner so as not to intentionally, wantonly and/or negligently cause injury to others, including the plaintiffs herein.

34. That at all times herein mentioned, defendant Officer DOUGLAS DEBONET, had the duty to maintain and ensure that his actions, acts, activities and behavior conformed to a certain standard of conduct established by law for the protection of others, including the plaintiffs, against unreasonable risk of harm.

35. That at all times herein mentioned, defendant Officer DOUGLAS DEBONET, had the duty to conduct himself in such a manner so as not to intentionally, wantonly and/or negligently cause injury to others, including the plaintiffs herein.

36. Upon information and belief, that on July 23, 2022, at approximately 11:30 a.m., the plaintiff, DILLON L TYME, was lawfully at the roadway known as the Old Town Road, at or near County Road 83, County of Suffolk and State of New York, and more specifically, in a motor vehicle he was operating at said location.

37. Upon information and belief, that on or about July 23, 2022, at approximately 11:30 AM, when Plaintiff, DILLON L TYME, encountered a road-rage confrontation by defendant Officer DOUGLAS DEBONET that resulted in a rear end collision at or near the intersection of Old Town Road and County Road 83 in the County of Suffolk, State of New York. Later that day, at approximately 5:00 PM, defendant Officer DOUGLAS DEBONET, arrived at Plaintiffs' home located 2 Ann Street, Selden, New York 11784, wherein which Plaintiff, DILLON L TYME, was present. Defendant Officer DOUGLAS DEBONET blocked

the Claimants' driveway, demanded to speak with Plaintiff, DILLON L TYME, and refused to leave. In response, Plaintiff, DILLON L TYME, sheltered in place and remained trapped and imprisoned inside, notifying his parents, Plaintiffs', DEVON L TYME and MICHELLE RITCHIE, as well as, the Suffolk County Police Department of the situation then and there existing.

38. Upon information and belief, that at the aforesaid time and place, Officers of the defendants THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, and specifically defendant Officer DOUGLAS DEBONET, were present at the aforementioned location.

39. Upon information and belief, that on July 23, 2022, at approximately 5:00 p.m., the plaintiff, DILLON L TYME, was lawfully at his place of residence, premises located at 2 Ann Street, County of Suffolk and State of New York.

40. Upon information and belief, that at the aforesaid time and place, Officers of the defendants THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, and specifically defendant Officer DOUGLAS DEBONET, were present at the aforementioned location.

41. Upon information and belief, that at the aforesaid time and place, Police Officers of the defendants THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, and specifically defendant Officer DOUGLAS DEBONET, were present at the aforementioned location in the scope and course of their employment as New York City Police Department Officers.

42. Upon information and belief, at the aforesaid time and place, plaintiff DILLON L TYME was advised to come out of his residence by Defendant Officer DOUGLAS DEBONET.

Plaintiff, DILLON L TYME, refused to come out and called plaintiffs DEVON L TYME and MICHELLE RITCHIE, his parents as well as the Suffolk County Police Department advising of the situation then and there existing. Upon returning to their place of residence plaintiff MICHELLE RITCHIE remained in their vehicle while plaintiff DEVON L TYME was confronted by defendant Officer DOUGLAS DEBONET on Plaintiffs' Porch and was pushed and threatened by defendant New York City Police Department Officer DOUGLAS DEBONET, before he was brandishing a firearm.

43. Upon information and belief, at the aforementioned time and place, plaintiffs, DEVON L TYME, DILLON L TYME AND MICHELLE RITCHIE, were assaulted, threatened, battered, and threatened verbally and physically by defendant Officer DOUGLAS DEBONET.

44. Upon information and belief, at the aforementioned time and place, plaintiff, DEVON L TYME, DILLON L TYME and MICHELLE RITCHIE, was wantonly, intentionally, maliciously, relentlessly, illegally and brutally assaulted by defendant New York City Police Department Officer DOUGLAS DEBONET, assaulted, battered, and threatened with a deadly weapon, by the aforementioned defendant OFFICER DOUGLAS DEBONET.

45. Upon information and belief, the abuse to which plaintiff was subjected was consistent with an institutionalized practice of THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, which was adopted and ratified by the aforementioned defendant Officer, the defendants having at no time taken any effective action to prevent the police personnel from continuing to engage in such misconduct.

46. Upon information and belief, defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, had prior notice of the vicious propensities of the

aforementioned defendant Police Officer DOUGLAS DEBONET, but took no steps to train him, correct his abuse of authority, or to discourage his unlawful use of authority.

47. The failure of defendants THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT to properly train the aforementioned defendant Officer defendant included the failure to instruct him in applicable provisions of the New York City and State Law Enforcement Law, and with proper and prudent use of force.

48. Upon information and belief, defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, authorized, tolerated as institutionalized practices, and ratified the misconduct hereinbefore detailed by failing to properly discipline, restrict, and control employees, including the aforementioned defendant Officer DOUGLAS DEBONET; by failing to take adequate precautions in the hiring, promotion, and retention of an Officer, including specifically the aforementioned defendant Officer DOUGLAS DEBONET; by failing to establish and/or assure the functioning of a bona fide and meaningful departmental system for dealing with complaints of Officer misconduct, but instead responding to such complaints with bureaucratic power and official denials calculated to mislead the public. This conduct also constitutes gross negligence under state law.

49. That by reason of the foregoing, the plaintiffs, DEVON L TYME, DILLON L TYME and MICHELLE RITCHIE, were injured.

50. That the foregoing occurrences and the resulting injuries to the plaintiffs were caused solely by the carelessness, recklessness, negligence, intentional infliction of emotional distress, abuse of process, excessive use of force, brutal use of force, wrongful assault and battery done by the defendants, their agents, servants and/or employees, including the defendant Officer named herein, Officer DOUGLAS DEBONET, in violation of the plaintiffs' Civil and

Constitutional rights, and without any cause, negligence or provocation on the part of the plaintiffs herein

51. That by reason of the foregoing, the plaintiff DEVON L TYME was rendered sick, sore, lame, disabled, suffering emotional shock and mental anguish, and his injuries caused great physical pain and emotional pain, some of which are permanent in nature, and plaintiff will be permanently caused to suffer pain, inconvenience and other effects of said injuries; and plaintiff has and will incur further expenses to care for said injuries and have and will in the future suffer loss of time and earnings from employment, and plaintiff will be unable to perform his usual daily and customary activities as he did prior, all to his damage in a sum which exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction over this matter.

52. That by reason of the foregoing, the plaintiff DILLON L TYME was rendered sick, sore, lame, disabled, suffering emotional shock and mental anguish, and his injuries caused great physical pain and emotional pain, some of which are permanent in nature, and plaintiff will be permanently caused to suffer pain, inconvenience and other effects of said injuries; and plaintiff has and will incur further expenses to care for said injuries and have and will in the future suffer loss of time and earnings from employment, and plaintiff will be unable to perform his usual daily and customary activities as he did prior, all to his damage in a sum which exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction over this matter.

53. That by reason of the foregoing, the plaintiff MICHELLE RITCHIE was rendered sick, sore, lame, disabled, suffering emotional shock and mental anguish, and her injuries caused great physical pain and emotional pain, some of which are permanent in nature, and plaintiff will

be permanently caused to suffer pain, inconvenience and other effects of said injuries; and plaintiff has and will incur further expenses to care for said injuries and have and will in the future suffer loss of time and earnings from employment, and plaintiff will be unable to perform her usual daily and customary activities as she did prior, all to her damage in a sum which exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction over this matter.

54. As a consequence of the abuse of authority detailed above, plaintiffs sustained the damages hereinbefore alleged, and hereby makes claims for punitive damages for the acts complained of herein.

**AS AND FOR A SECOND CAUSE OF ACTION
ON BEHALF OF PLAINTIFFS DEVON L TYME, DILLON L TYME AND MICHELLE
RITCHIE:
RESPONDEAT SUPERIOR**

55. Plaintiffs repeats reiterates, and realleges each and every allegation as set forth in paragraphs numbered “1” through “54” with the same force and effect as if fully set forth herein.

56. On or about July 23, 2022, plaintiffs were the victims of the tortious conduct perpetrated by Defendant OFFICER DOUGLAS DEBONET, whose tortious conduct consisted of assault, battery, intentional infliction of emotional distress, negligence, violating the plaintiffs’ civil rights, slander, excessive force, negligent and malicious prosecution, failing to provide reasonable and adequate medical care and acting with deliberate indifference to plaintiffs’ needs, and in otherwise carelessly and improperly exercising their authority and power.

57. At the aforesaid time and place, and at all times pertinent to this action, the aforementioned defendant Officer DOUGLAS DEBONET committed the aforementioned tortious conduct that injured the plaintiffs, as agents, servants, officers, and/or employees of the

defendants, including the defendants THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT.

58. As a result of the aforementioned tortious conduct perpetrated by said defendants, their agents, servants, officers, and/or employees, plaintiffs suffered personal injuries, embarrassment, loss of self-esteem in their community, inconvenience, mental anguish, humiliation, damages, and losses, both physical and psychological, all in a sum which exceeds the jurisdictional limits of all lower courts.

59. At the time and place of the assault of the plaintiffs by the employees of the defendants, as aforesaid, such employees were acting within the scope of their employment duties for their employer, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT. Such tortious conduct thereby committed by defendants was egregious and oppressive and characterized by malice or wantonness justifying the imposition of punitive damages therefor.

60. The imposition of punitive damages on defendants, their agents, servants, officers, and employees, for the egregious tortious conduct of defendants' employees, is justified on the grounds that defendants, their agents, servants, officers, and employees were reckless or wanton in retaining the employees who committed the torts after knowledge of the employees' proclivities to engage in such conduct.

**AS AND FOR A THIRD CAUSE OF ACTION
ON BEHALF OF THE PLAINTIFFS DEVON L TYME, DILLON L TYME AND
MICHELLE RITCHIE:
NEGLIGENCE IN PERFORMANCE OF DUTIES**

61. Plaintiffs repeat, reiterates, and realleges each and every allegation as set forth in paragraphs numbered "1" through "60" with the same force and effect as if fully set forth herein.

62. At the aforesaid time and place, plaintiffs were the victims of negligence on the part of the defendants, their agents, servants, officers, and employees, which consisted of violating the plaintiffs' civil rights, assault, battery, slander, excessive force, malicious prosecution, , failure to provide reasonable and adequate medical care and acting with deliberate indifference to the plaintiffs, and in otherwise carelessly and improperly exercising its authority and power.

63. That the defendants, their agents, servants, officers, and employees negligently, carelessly, and recklessly performed his officer and police officer duties in that he failed to use such care in the performance of his police duties as a reasonably prudent and careful police officer would have used under similar circumstances; in that he carelessly, recklessly and without provocation negligently assaulted the plaintiffs; negligently, carelessly and recklessly used the threat of physical injury to the plaintiffs and actually caused physical injury upon the plaintiffs thereat; failed to provide adequate medical care after the plaintiffs requested such; negligently threatened the plaintiffs; and in that the defendants, their agents, servant and employees were otherwise careless, reckless and negligent.

64. As a direct and proximate cause of the negligence described above, plaintiffs suffered personal injuries and damages, embarrassment, loss of self-esteem in their community, anxiety, inconvenience, mental anguish, humiliation, damages and losses, both physical and psychological, all in a sum which exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

**AS AND FOR A FOURTH CAUSE OF ACTION
ON BEHALF OF THE PLAINTIFFS DEVON L TYME, DILLON L TYME AND
MICHELLE RITCHIE:
NEGLIGENT HIRING**

65. Plaintiffs repeat, reiterates, and realleges each and every allegation as set forth in paragraphs numbered “1” through “64” with the same force and effect as if fully set forth herein.

66. On or before July 23, 2022, defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, hired defendant Officer DOUGLAS DEBONET, as an agent, servant, officer and/or employee.

67. Upon information and belief, the aforementioned defendant Officer continued to be employed by defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, through and including July 23, 2022, as an agent, servant, officer and/or employee.

68. On or about July 23, 2022, the aforementioned defendant Officer DOUGLAS DEBONET, was incompetent and unfit to perform the work required in his capacity as an agent, servant, officer and/or employee for the defendants.

69. Upon information and belief, defendants knew or in the exercise of reasonable care, should have known that a person in plaintiffs’ position would be subjected to an unreasonable risk of harm from the aforementioned defendant, Officer DOUGLAS DEBONET, who was a New York City Police Department Officer.

70. Upon information and belief, at all times hereinafter mentioned, the defendants breached the duty it owed to plaintiffs to use reasonable care in hiring its employees by its failure to conduct a reasonable investigation into the backgrounds and characters of the aforementioned defendant Officer prior to the time he was hired by the defendants.

71. Upon information and belief, the defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, when they hired the aforementioned defendant Officer, breached the duty it owed to plaintiffs to use reasonable care in hiring its

employees by hiring said Officer when defendants, prior to the time of such hiring, knew or should have known that the defendant Officer was incompetent or unfit for employment.

72. On or about July 23, 2022, the aforementioned defendant Officer assaulted and battered the plaintiffs, intentionally inflicted emotional distress on plaintiffs, violated the plaintiffs' civil rights, slandered, used excessive force on, failed to provide reasonable and adequate medical care, and otherwise carelessly and improperly exercised his authority and power as against the plaintiffs.

73. As a direct and proximate result of defendants' breach of duty in hiring the aforementioned defendant Officer, plaintiffs were injured in mind and body, still suffer and upon information and belief, will continue to suffer great physical and mental pain, and they were rendered sick, sore, lame and disabled and so remain, and has expended and incurred diverse sums of money in an effort to cure themselves of said injuries to extricate themselves from the indignities and humiliation felt by them due to the actions of the defendants, their agents, servants, and employees, including counsel fees and disbursements and, upon information and belief, will expend further sums in that direction, and the plaintiffs have been otherwise damaged, all in a sum which exceeds the jurisdictional limits of all lower courts.

**AS AND FOR A FIFTH CAUSE OF ACTION
ON BEHALF OF THE PLAINTIFFS DEVON L TYME, DILLON L TYME AND
MICHELLE RITCHIE:
NEGLIGENT TRAINING AND SUPERVISION**

74. Plaintiffs repeat, reiterates, and realleges each and every allegation as set forth in paragraphs numbered "1" through "73" with the same force and effect as if fully set forth herein.

75. That the defendants, their agents, servants and employees negligently, carelessly and recklessly failed to properly train and supervise their employees, in particular, the named

defendant, in that they failed to train their employees in the proper way to maintain order; to control their tempers and exercise the proper demeanor and temperament; and to otherwise act as reasonable, prudent corrections officers; failed to give them proper instruction as to their demeanor, behavior and conduct as representatives of their employer; and, in that the defendants, their agents, servants, and employees were otherwise reckless, careless and negligent.

76. That the aforesaid occurrence and the resulting injuries to plaintiffs' mind and body therefrom, were caused wholly and solely by reason of the negligence of the defendants, their agents, servants and employees without any negligence on the part of the plaintiffs.

77. That by reason of the aforesaid, the plaintiffs were injured in mind and body, still suffer and upon information and belief, will continue to suffer great physical and mental pain, and they were rendered sick, sore, lame and disabled and so remains, and have expended and incurred diverse sums of money in an effort to cure themselves of said injuries, to extricate themselves from the indignities and humiliation felt by them due to the actions of the defendants, their agents, servants and employees, including counsel fees and disbursements; and upon information and belief, will expend further sums in that direction, and the plaintiffs have been otherwise damaged, all in a sum which exceeds the jurisdictional limits of all lower courts.

**AS AND FOR A SIXTH CAUSE OF ACTION
ON BEHALF OF THE PLAINTIFFS DEVON L TYME, DILLON L TYME AND
MICHELLE RITCHIE:
INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS**

78. Plaintiffs repeat, reiterates and realleges each and every allegation as set forth in paragraphs numbered "1" through "77" with the same force and effect as if fully set forth herein.

79. The acts of defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, their agents, servants, officers and/or employees, more

specifically the aforementioned defendant Officer DOUGLAS DEBONET, described herein was done willfully, maliciously, outrageously, **deliberately**, and purposely with the intention to inflict emotional distress upon plaintiffs and/or was done in reckless disregard of the probability of causing plaintiffs emotional distress, and these acts did in fact result in severe and extreme emotional distress.

80. As a direct and proximate result of the acts mentioned above, plaintiffs were caused to incur severe and grievous mental and emotional suffering, fright, anguish, shock, nervousness, anxiety, and feelings of vulnerability. Plaintiffs continue to be fearful, anxious, and nervous, for which they were required to seek and receive medical treatment, all to their damage in a sum which exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

**AS AND FOR A SEVENTH CAUSE OF ACTION
ON BEHALF OF THE PLAINTIFFS DEVON L TYME, DILLON L TYME AND
MICHELLE RITCHIE:
ASSAULT AND BATTERY**

81. Plaintiffs repeat, reiterates and realleges each and every allegation as set forth in paragraphs numbered “1” through “80” with the same force and effect as if fully set forth herein.

82. Upon information and belief, that on or about July 23, 2022, the aforementioned defendant Officer DOUGLAS DEBONET, violently assaulted the plaintiffs when the circumstances did not require or necessitate the verbal and physical threatening of the plaintiffs and assaulting the plaintiffs.

83. That the aforementioned defendant Officer, acting as an agent on behalf of defendants and within the scope of his employment, intentionally, willfully and maliciously assaulted the plaintiffs, DEVON L TYME, DILLON L TYME AND MICHELLE RITCHIE, in

that he had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the plaintiffs, and that act caused apprehension of such contact in the plaintiffs, and defendant, in a hostile and/or offensive manner assaulted the plaintiffs, without their consent and with the intention of causing harmful and/or offensive bodily contact to the plaintiffs and caused the plaintiffs to be in fear of immediate death and/or bodily harm, and did in fact make contact with the plaintiffs; and caused plaintiff bodily harm.

84. The defendant Officer's actions were willful, intentional and unwarranted, without any just cause of provocations.

85. That as a result, plaintiffs, DEVON L TYME, DILLON L TYME AND MICHELLE RITCHIE, have been damaged in an amount which exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

**AS AND FOR AN EIGHTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFFS DEVON L TYME, DILLON L TYME AND MICHELLE
RITCHIE:
EXCESSIVE FORCE**

86. Plaintiffs repeat, reiterates and realleges each and every allegation as set forth in paragraphs numbered "1" through "86" with the same force and effect as if fully set forth herein.

87. Plaintiffs allege that the assault and battery by the defendant Officer with the use of excessive force was in violation of his federal and state constitutional and civil rights, as said defendants acted with deliberate indifference to the plaintiffs' civil and constitutional rights.

88. The defendants, their, agents, servants, officers, and/or employees acted under color of the authority of law as Police Officer for THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT.

89. Plaintiffs allege that the force used by the defendant Officer DOUGLAS DEBONET, their agents, servants, officers, and employees, was unreasonable in light of the circumstances of the assault and thereby violated the rights of the plaintiffs under the First, Fourth, Fifth, Eighth and Fourteenth Amendment right to be free from such treatment.

90. Plaintiffs allege that the force used by the defendants, their agents, servants, officers, and employees was unreasonable in light of the circumstances of the assault and thereby violated the rights of the plaintiffs under New York Civil Rights Law §40-c.

91. The assault and battery was unconstitutional as the defendant Officer did not have to injure the plaintiffs in such a manner as plaintiffs were not a threat to his well-being. The assault and battery and excessive force of plaintiffs committed by the defendant Office was not done in a good faith effort to maintain or restore order, but rather was done maliciously and sadistically to cause harm.

92. The conduct aforementioned committed by the defendants, their agents, servants, officers, and/or employees, was excessive, unnecessary, unwarranted, unjustified, without cause, willful, wanton, malicious, intentional, and with clear intent to deprive the plaintiffs of their rights, privileges, and immunities secured to them under the Constitution of the United States of America and of the City and State of New York, Acts of the Congress of the United States of America, which provide for the equal rights of citizens of the United States, and which rights, privileges and immunities are guaranteed by the Due Process Clauses of the Constitution of the United States of America and Title 42, United States Code, Section 1983 justifying the imposition of punitive damages therefor.

93. The defendants, their agents, servants and employees severely assaulted and battered the plaintiffs and deprived them of their rights and liberties as set forth in the

Constitution of the United States and of the City and State of New York, in that they continued to assault and battered the plaintiffs without any conduct on the part of the plaintiffs to so warrant; to wit; in that all of the actions of the defendants, their agents, servants and employees, were committed with the intention to cause bodily and mental injury to the plaintiffs; in that the defendants, their agents, servants and employees caused an assault and battery when he in a hostile and/or offensive manner threatened and caused serious injury to the plaintiffs without plaintiffs' consent and with the intention of causing harmful and/or offensive bodily contact to the plaintiffs, all without warrant, probable cause or any lawful cause whatever; in that the defendants, their agents, servants and employees failed to adequately and properly hire, retain, train, supervise, discipline or in any other way control the behavior and performance of the defendants, their agents, servants and employees and in their hiring practices in the exercise of their police officer function and their failure to enforce the laws of the State of New York and the United States is evidence of the reckless lack of cautious regard for the rights of citizens of the State of New York and the United States including plaintiffs and exhibited a lack of that degree of due care which prudent and reasonable individuals would show in executing the duties of the defendants; in the failure of the defendants, their agents, servants and employees to hire, train, supervise, discipline or in any other way control the defendants Officer, in the exercise of his functions and his failure to enforce the laws of the State of New York was and is carried out willfully, wantonly, maliciously and with such reckless disregard for the dangers of harm and injury to the citizens of the State of New York including plaintiffs; in that the acts of the defendants, their agents, servants and employees herein, the failure of the defendants to discipline and properly hire the defendant Office and the continued employment of the defendant Officer present a clear and present danger to the citizens of the City and State of New York; in

that the defendants, their agents, servants and employees permitted the use of policy and/or drafted policy that violated the constitutional rights of the plaintiffs; in that each and all of the acts of the defendants, their agents, servants and employees alleged herein were done not as individuals but under the color and pretense of the statutes, ordinances, regulations, customs and usages of the City and State of New York, and under the authority of their office as police officers for said City and State, and for the defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT.

94. Upon information and belief, defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, and the herein individually named officer who his an agent, servant, and employee of defendants, including the aforementioned police defendant Officer DOUGLAS DEBONET, acting under color of law, has subjected plaintiffs and other persons to a pattern of conduct consisting of assault, battery, libel, excessive force, slander, negligence, failure to provide reasonable and adequate medical care, assault and intentional infliction of emotional distress in denial of rights, privileges and immunities guaranteed plaintiffs, DEVON L TYME, DILLON L TYME AND MICHELLE RITCHIE, and other citizens by the Constitution of the United States and the State of New York.

95. Upon information and belief, this systematic pattern of conduct consists of a large number of individual acts of violence and intimidation visited on plaintiffs, DEVON L TYME, DILLON L TYME AND MICHELLE RITCHIE, and other citizens of the County of Suffolk, City of Selden and State of New York, acting in concert with persons unknown to plaintiffs and under color of law and said acts, while carried out under color of law, have no justification or excuse in law and are instead illegal, improper and unrelated to any activity in which police

officers may appropriately and legally engage in the course of protecting persons or property or ensuring civil order.

96. Upon information and belief, although defendants knew or should have known of the fact that this pattern of conduct was carried out by their agents, servants and employees, the defendants have not taken any steps or made any efforts to halt this course of conduct, to make redress to the plaintiffs or other citizens injured thereby, or to take the proper disciplinary action against any of their employees or agents.

97. The unlawful and illegal conduct of the defendants, their agents, servants, and employees and each of them, deprived plaintiff of the rights, privileges and immunities secured to her by the Constitution of the United States and of the State of New York, more specifically thereat, the liberty interest in being free from bodily injury.

98. The conduct aforementioned committed by the defendants, their agents, servants, officers, and/or employees, is of the type that shocks the conscience and entitles plaintiffs to an award of punitive damages.

99. As a direct and proximate cause of the aforementioned actions, plaintiffs have suffered severe personal injuries, embarrassment, loss of self-esteem in their community, inconvenience, mental anguish, humiliation, damages, and losses, both physical and psychological.

100. Pursuant to 42 U.S.C. section 1983, plaintiffs seek an award of attorney fees and costs incurred in bringing this action.

101. That by reason of the aforesaid, the plaintiffs request the following relief:

- a) Compensatory damages for pain and suffering in a sum which exceeds the jurisdictional limits of all lower courts;

- b) Punitive damages in a sum which exceeds the jurisdictional limits of all lower courts;
- c) An award of reasonable attorney's fees, costs and disbursements;

**AS AND FOR A NINTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF DEVON L TYME, DILLON L TYME AND MICHELLE
RITCHIE: UNINTENTIONAL RESULT OF INTENTIONAL ACT**

102. Plaintiffs repeat, reiterates and realleges each and every allegation as set forth in paragraphs numbered “1” through “101” with the same force and effect as if fully set forth herein.

103. That the damages sustained by the plaintiffs were the unintentional result of the intentional acts of the defendants discussed herein, including but not limited to defendant Officer DOUGLAS DEBONET.

104. That by reason of the aforesaid, the plaintiffs were rendered sick, sore, lame, and disabled, and their injuries, upon information and belief, are of a permanent character. That by reason thereof, they have been obliged to incur expense and obligations for medicines, medical care, attention and treatment and they are informed and verily believe that they will in the future be obliged to incur further expense and obligations for medicines, medical care, attention and treatment and continue to have pain and suffering and be unable to follow their current vocations, all to their damage in a sum which exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

WHEREFORE, the plaintiffs demand judgment against the defendants on the First cause of action in a sum which exceeds the jurisdictional limits of all lower Courts, and for punitive damages; on the Second cause of action in a sum which exceeds the jurisdictional limits of all lower Courts; on the Third cause of action in a sum which exceeds the jurisdictional limits of all lower Courts; on the Fourth cause of action in a sum which exceeds the jurisdictional limits of all lower Courts; on the Fifth cause of action in a sum which exceeds the jurisdictional limits of all lower Courts; on the Sixth cause of action in a sum which exceeds the jurisdictional limits of all lower Courts; on the Seventh cause of action in a sum which exceeds the jurisdictional limits of all lower Courts; on the Eighth cause of action in a sum which exceeds the jurisdictional limits of all lower Courts; on the Ninth cause of action in a sum which exceeds the jurisdictional limits of all lower Courts and punitive damages in an amount which exceeds the jurisdictional limits of all lower Courts, as well as attorney's fees in a sum within the jurisdictional limits of this Court; and for such other, further, and different relief as to this Court may seem just and proper.

Dated: Garden City, New York
April 5, 2023

Yours, etc.,

SANDERS, ARONOV, GROSSMAN,
WOYCIK, VIENER & KALANT, PLLC

STEPHANIE G. OVADIA, ESQ.

Attorneys for Plaintiffs

**DEVON L TYME, DILLON L TYME AND
MICHELLE RITCHIE,
DILLON L TYME and
MICHELLE RITCHIE**

100 Garden City Plaza, Suite 500

Garden City, New York 11530

(516) 741-5252

FILE #: SAG-ASSLT-MU-68578

ATTORNEY'S VERIFICATION

STEPHANIE G. OVADIA, ESQ., an attorney duly admitted to practice law before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am an attorney at **SANDERS, ARONOVA, GROSSMAN, WOYCIK, VIENER & KALANT, PLLC**, attorneys of record for Plaintiffs, **DEVON L TYME, DILLON L TYME AND MICHELLE RITCHIE, DILLON L TYME and MICHELLE RITCHIE**. I have read the annexed **COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

This verification is made by me because Plaintiffs are not presently in the County wherein I maintain my offices.

Dated: Garden City, New York
April 5, 2023



STEPHANIE G. OVADIA, ESQ.

Index No.
SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF SUFFOLK

DEVON L TYME, DILLON L TYME and MICHELLE RITCHIE,

Plaintiffs,

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT and NEW YORK CITY
POLICE OFFICER DOUGLAS DEBONET, Individually and as a New York City Police Officer,

Defendants.

SUMMONS AND VERIFIED COMPLAINT

**SANDERS, ARONOVA, GROSSMAN,
WOYCIK, VIENER & KALANT, PLLC**
Attorneys for Plaintiffs
Office and Post Office Address, Telephone
100 Garden City Plaza, Suite 500
Garden City, New York 11530
Bus. (516) 741-5252
Fax (516) 741-0799

TO:

PLEASE TAKE NOTICE

that the within is a (*certified*) true copy of a
duly entered in the office of the clerk of the within named court on

NOTICE OF ENTRY

that an Order of which the within is a true copy will be
presented for settlement to the Hon.
one of the judges of the within named court, at _____ on
at _____ a.m.

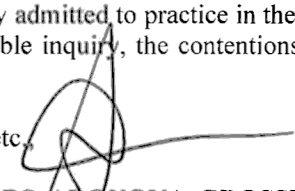
NOTICE OF
SETTLEMENT

ATTORNEY CERTIFICATION PURSUANT TO 22 NYCRR 130-1.1A

Pursuant to 22 NYCRR 130-1.1a, the undersigned, an attorney admitted to practice in the courts of New York State, certified that, upon information and belief, and after reasonable inquiry, the contentions contained in the annexed documents are not frivolous.

Dated: April 5, 2023

Yours, etc.,


**SANDERS, ARONOVA, GROSSMAN,
WOYCIK, VIENER & KALANT, PLLC**
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